



INDIAN POLITY



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PASSING OF BILL IN PARLIAMENT

MODULE – 67

RESOLUTIONS

- 1 A resolution is one of the procedural devices to raise discussion in Parliament on a matter of general public interest.
- 2 The discussion on a resolution is strictly relevant to and within the scope of the resolution.
- 3 A resolution reflects the general opinion of the House in as much as it is a general declaration, a recommendation or approval/disapproval of an act of the Govt.

Resolutions are different from motions in the following respects:

- 1 All resolutions come in the category of substantive motions, that is to say, every resolution is a particular type of motion.
- 2 All motions need not necessarily be substantive.
- 3 Further, all motions are not necessarily put to vote of the House, whereas all the resolutions are required to be voted upon.

LET US SEE AN EXAMPLE FOR RESOLUTION

The resolution for removing the Vice-President of India can be moved in the

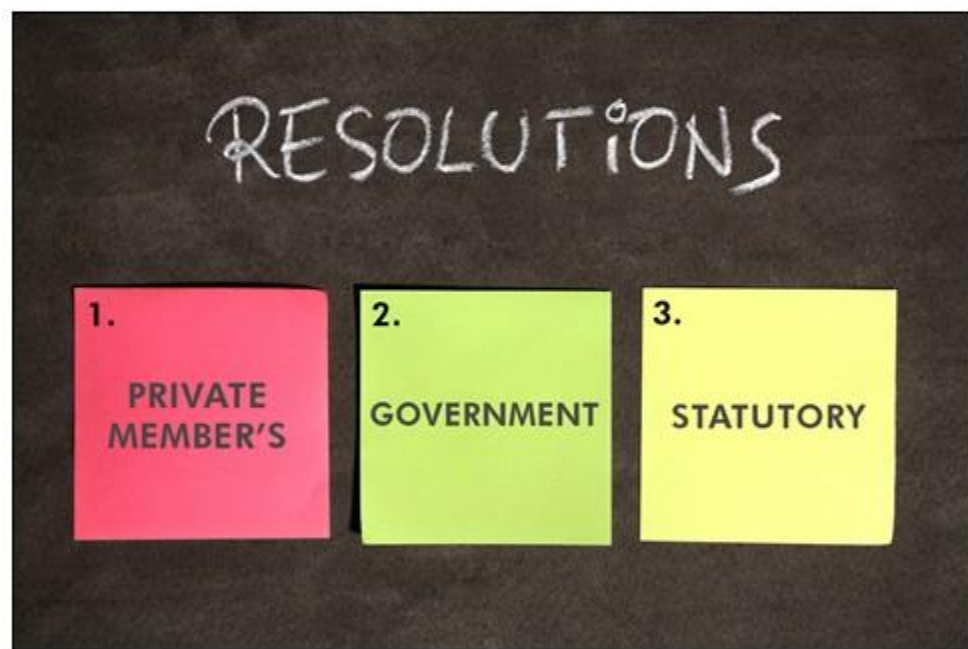
- a) Lok Sabha alone
- b) Either House of Parliament
- c) Joint Sitting of Parliament
- d) Rajya Sabha alone



ANSWER- D

RESOLUTIONS

Resolutions are classified into three categories:



- 1 PRIVATE MEMBER'S RESOLUTION:** It is one that is moved by a private member (other than a minister). It is discussed only on alternate Fridays and in the afternoon sitting.
- 2 GOVERNMENT RESOLUTION:** It is one that is moved by a minister. It can be taken up any day from Monday to Thursday.
- 3 STATUTORY RESOLUTION:** It can be moved either by a private member or a minister. It is so called because it is always tabled in pursuance of a provision in the Constitution or an Act of Parliament.

YOUTH PARLIAMENT

- 1 The **scheme of Youth Parliament** was started on the recommendation of the **Fourth All India Whips Conference**. Its objectives are:
 - 1) To **acquaint the younger generations** with practices and procedures of Parliament.
 - 2) To **imbibe the spirit of discipline** and tolerance cultivating character in the minds of youth and
 - 3) To **inculcate in the student community the basic values of democracy** and to enable them to acquire a proper perspective on the functioning of democratic institutions.

- 2 The Ministry Of Parliamentary Affairs provides necessary training and encouragement to the states in introducing the scheme.



QUESTION

The All-India Whips Conference is organised by which of the following?

- a) Parliamentary Affairs Committee.
- b) Political Affairs Committee.
- c) Ministry of Parliamentary Affairs
- d) Ministry of Home Affairs

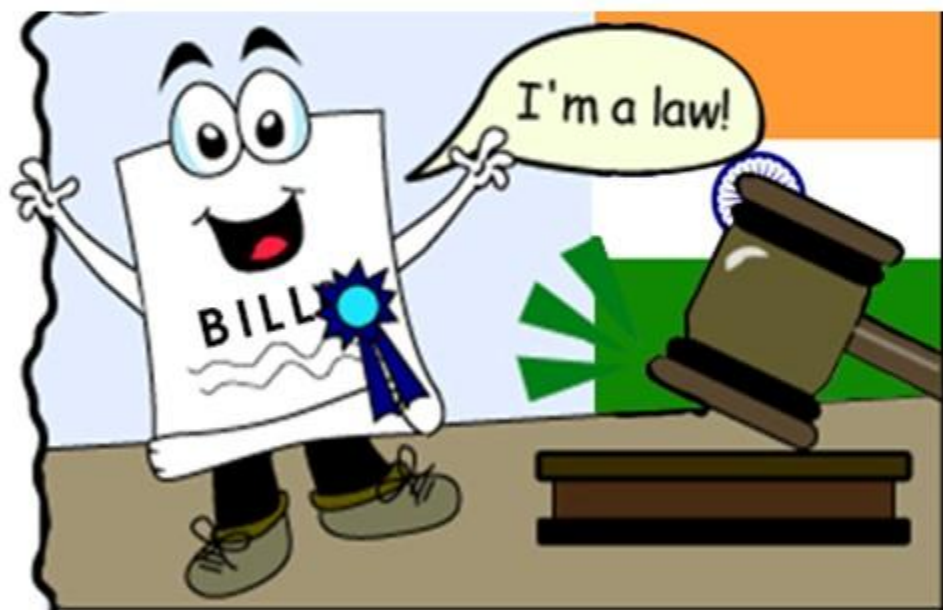
ANSWER- C

MORE ON WHIPS CONFERENCE



The 18th All India Whips Conference was held recently on 9th January 2018 in Udaipur.

- The Ministry of Parliamentary Affairs organises All India Whips conference to establish suitable links among the Whips of various political parties at the centre and the states, to discuss matters of common interest and to strengthen the institution of Parliamentary democracy.
- 18 All India Whips Conferences have been organized so far since 1952.
- 18th All India Whips' Conference, gave Ten Recommendations for Efficient Functioning of Parliament and State Legislatures.



- 1 The legislative procedure is identical in both the Houses of Parliament.

- 2 Every bill has to pass through the same stages in each House.
- 3 A bill is a proposal for legislation and it becomes an act or law when duly enacted.
- 4 Bills introduced in the Parliament are of two kinds: **public bills and private bills** (also known as government bills and private members' bills respectively).
- 5 Though both are **governed by the same general procedure** and pass through the same stages in the House, they differ in various respects.

LEGISLATIVE PROCEDURE IN PARLIAMENT

S.NO	PUBLIC BILL	PRIVATE BILL
1	It is introduced in the Parliament by a minister.	It is introduced by any member of Parliament other than a minister.
2	It has greater chance to be approved by the Parliament.	It has lesser chance to be approved by the Parliament.
3	Its rejection by the House amounts to the expression of want of parliamentary confidence in the government and may lead to its resignation.	Its rejection by the House has no implication on the parliamentary confidence in the government or its resignation.
4	Its introduction in the House requires seven days' notice.	Its introduction in the House requires one month's notice.
5	It is drafted by the concerned department in consultation with the law department.	Its drafting is the responsibility of the member concerned.



> **MONEY BILL**



> **ORDINARY BILL**



> **CONSTITUTIONAL BILL**



> **FINANCIAL BILL**

- 6 The bills introduced in the Parliament can also be classified into four categories:
1. **Ordinary bills**, which are concerned with any matter other than financial subjects.
 2. **Money bills**, which are concerned with the financial matters like taxation, public expenditure, etc.
 3. **Financial bills**, which are also concerned with financial matters (but are different from money bills).
 4. **Constitution amendment bills**, which are concerned with the amendment of the provisions of the Constitution.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

Every ordinary bill has to pass through the following five stages in the Parliament before it finds a place on the Statute Book:

1

FIRST READING

- 1 An ordinary bill can be introduced in either House of Parliament.
- 2 Such a bill can be introduced either by a minister or by any other member.
- 3 The member who wants to introduce the bill has to ask for the leave of the House.
- 4 When the House grants leave to introduce the bill, the mover of the bill introduces it by reading its title and objectives.

- 5 No discussion on the bill takes place at this stage.

- 6 Later, the bill is published in the Gazette of India.

- 7 The introduction of the bill and its publication in the Gazette constitute the first reading of the bill.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

2

SECOND READING



- 1 During this stage, the bill receives not only the general but **also the detailed scrutiny and assumes its final shape.**
- 2 Hence, it forms the most important stage in the enactment of a bill.
- 3 In fact, this stage involves three more sub-stages, namely, stage of **general discussion, committee stage and consideration stage.**

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

2 SECOND READING

(a) Stage of General Discussion

- 1 The **printed copies** of the bill are distributed to all the members.
- 2 The **principles of the bill** and its provisions are discussed generally, but the **details of the bill** are not discussed.

At this stage, the House can take any one of the following four actions:

- ✓ It may take the **bill into consideration immediately** or on some other fixed date;
- ✓ It may refer the bill to **a select committee** of the House;
- ✓ It may refer the bill to a **joint committee of the two Houses**; and
- ✓ It may circulate the bill to **elicit public opinion**.

A Select Committee consists of members of the House where the bill has originated and a joint committee consists of members of both the Houses of Parliament

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

2 SECOND READING

(b) Committee Stage

- 1 The usual practice is to refer the bill to a select committee of the House.
- 2 This committee examines the bill thoroughly and in detail, **clause by clause**.
- 3 It can **also amend its provisions**, but **without altering the principles** underlying it.
- 4 After completing the scrutiny and discussion, the committee reports the bill back to the House.

(c) Consideration Stage

- 1 The House, after receiving the bill from the select committee, **considers the provisions of the bill clause by clause**.
- 2 Each clause is discussed and voted upon separately.
- 3 The members **can also move amendments** and if accepted, they become part of the bill.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

3

THIRD READING

1 At this stage, the **debate is confined to the acceptance or rejection** of the bill as a whole and **no amendments are allowed**, as the general principles underlying the bill have already been scrutinised during the stage of second reading.

2 If the majority of members present and voting accept the bill, the bill is regarded as passed by the House.

3 Thereafter, the bill is **authenticated by the presiding officer of the House** and transmitted to the **second House** for consideration and approval.

4 A bill is deemed to have been passed by the Parliament only **when both the Houses have agreed to it**, either with or without amendments.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

4

BILL IN THE SECOND HOUSE



1

In the second House also, the bill passes through all **the three stages**, that is, first reading, second reading and third reading.

2

There are four alternatives before this House:

- a) it may **pass the bill** as sent by the first house (ie, without amendments);
- b) it may **pass the bill with amendments** and return it to the first House for reconsideration;
- c) it may **reject the bill altogether**; and
- d) it may **not take any action** and thus keep the bill pending.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

4 BILL IN THE SECOND HOUSE

- 3 If the second House passes the bill without any amendments or the first House accepts the amendments suggested by the second House, the bill is deemed to have been passed by both the Houses and the same is sent to the **president for his assent**.

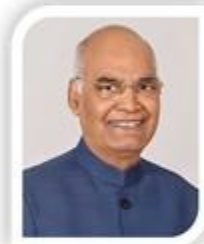


- 4 On the other hand, if the first House rejects the amendments suggested by the second House or the second House rejects the bill altogether or the second House does not take any action for six months, a deadlock is deemed to have taken place.
- 5 To **resolve such a deadlock**, the president can summon a **joint sitting** of the two Houses.
- 6 If the majority of members present and voting in the joint sitting approves the bill, the bill is deemed to have been passed by both the Houses.

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

5 ASSENT OF THE PRESIDENT



YES

WITHHOLD

VETO

RECONSIDERATION

1 Every bill after being passed by both Houses of Parliament either singly or at a joint sitting, is presented to the president for his assent.

2 There are three alternatives before the president:

- a) he may **give his assent** to the bill; or
- b) he may **withhold his assent** to the bill; or
- c) he may **return the bill** for reconsideration of the Houses.



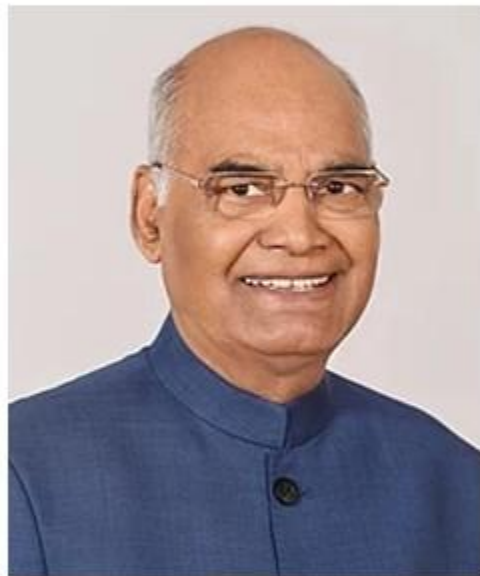
Bill of Parliament

LEGISLATIVE PROCEDURE IN PARLIAMENT

ORDINARY BILLS

4

ASSENT OF THE PRESIDENT



- 3 If the president gives his assent to the bill, the bill becomes an act and is placed on the Statute Book.

4

If the President withholds his assent to the bill, it ends and does not become an act.

5

If the President returns the bill for reconsideration and if it is passed by both the Houses again with or without amendments and presented to the President for his assent, the president must give his assent to the bill.

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